

Court No. - 4

Case :- WRIT - C No. - 36137 of 2019

Petitioner :- Smt. Ramvati

Respondent :- State Of U.P. And 02 Others

Counsel for Petitioner :- Shiv Mangal Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Vivek Varma,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no. 1 & 3, Mr Baleshwar Chaturvedi, Advocate for the respondent no. 2 and perused the record.

This writ petition has been filed by the petitioner with the following reliefs:-

(a) Issue, a writ, order or direction in the nature of certiorari quashing the impugned recovery citation/certificate dated 20.9.2019 issued by the Tehsildar, Tehsil and District Kasganj (Annexure No. 2 to the writ petition).

(b) Issue a writ order or direction in the nature of mandamus commanding/directing the respondents to comply with the judgement and order dated 1.4.2019 passed by Vidyut Lokpal, Lucknow within stipulated period.

(c) Issue a suitable writ, order or direction as this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(d) Award cost of petition in favour of the petitioner against the respondents.

Sri Baleshwar Chaturvedi, learned counsel appearing for the respondent no. 2, at the first instance, has raised preliminary objection with regard to maintainability of the writ petition on the ground that the dispute which the petitioner is raising by means of this writ petition primarily concerns the accuracy of certain bills raised by the respondents and for redressal of the same, petitioner has got statutory alternative remedy under Clause 6.5(b) of the UP Electricity Supply Code, 2005.

In rebuttal to the said argument, learned counsel for the petitioner has submitted that since the recovery certificate for recovery of the amount payable under the impugned recovery notice has already been issued and in case, petitioner avails the remedy available to him, and by the time the amount is recovered, in that situation the petitioner shall be left

remediless. It is further submitted that liberty be given to petitioner to move an application before the respondent no. 2 i.e. Executive Engineer ventilating all his grievance therein.

In view of above, it is provided that in case petitioner submits any representation ventilating his grievance alongwith certified copy of this order and other relevant documents within a week from today, same will be looked into and decided by respondent no. 2-i.e. Executive Engineer, Urban Electricity and Distribution Division, Kasganj by passing a reasoned and speaking order within a period of four weeks from the date of filing of a certified copy of this order by the petitioner before him along with his representation.

For a period of four weeks from today or till the respondent no. 2 decides the application of the petitioner, whichever is earlier, the recovery proceeding, initiated against the petitioner, pursuant to the impugned recovery citation dated 20.09.2019 shall remain in abeyance.

It is further made clear that in case the petitioner fails to raise his grievance before the respondent no. 2 along with certified copy of this order within the specified period, the writ petition shall stand dismissed without reference to the court and the petitioner shall not be entitled to any benefit of this order.

The writ petition is disposed of.

Order Date :- 11.11.2019

RavindraKSingh